MunichTech GmbH

INFORMATION SECURITY MANAGEMENT SYSTEM

NIS-2 Betroffenheitsprüfung and BSI Registration Record

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Version	1.0
Status	Final
Classification	Internal
Regulatory Basis	§ 33 BSIG (NIS2 Art. 27); § 28(2) BSIG (Anlage 1)
ISO 27001:2022 Clauses	4.1, 4.2, 6.1.3, 7.5
Document Owner	IT Security Lead
Approved By	Managing Director (CEO)
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Version	*Date*	*Author*	*Change Description*
1.0	[Date]	Austin Bond	Initial issue. Self-assessment of NIS-2 applicability under Sec. 28 BSIG, classification as a wichtige Einrichtung, and record of registration under Sec. 33 BSIG.

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1. Purpose and Scope

This record documents MunichTech GmbH's self-assessment under § 28 BSIG, the resulting classification as a wichtige Einrichtung (important entity), and the registration submitted to the Federal Office for Information Security (BSI) under § 33 BSIG. It exists so that the classification decision can be reconstructed and defended at any point in the future, without relying on the recollection of the individuals who made it.

The record is an internal ISMS artifact. It is not a document issued by the BSI and must never be presented as one. Section 10 states precisely what it does and does not evidence.

2. Legal Basis

2.1 The NIS-2-Umsetzungsgesetz

Directive (EU) 2022/2555 (NIS-2) was transposed into German law by the NIS-2-Umsetzungsgesetz of 5 December 2025 (BGBl. 2025 I Nr. 301), which restructured the BSIG. The amended BSIG has applied since 6 December 2025.

The provisions relevant to this record are:

- § 28 BSIG — scope and the categories of Einrichtung, together with Anlage 1 (sectors and entity types) and the size thresholds.
- § 30 BSIG — risk-management measures (NIS2 Art. 21).
- § 32 BSIG — reporting obligations: early warning within 24 hours, notification within 72 hours, final report within one month (NIS2 Art. 23).
- § 33 BSIG — registration with the BSI (NIS2 Art. 27).
- § 38 BSIG — management-body accountability and training (NIS2 Art. 20).
- § 65 BSIG — administrative fines (NIS2 Art. 34).

2.2 Why a documented self-assessment

The BSIG does not require the BSI to certify an entity's status before obligations attach. An entity that meets the scope criteria is subject to those obligations of its own motion, and the burden of showing that it assessed its position correctly rests with the entity. A written, dated and approved Betroffenheitsprüfung is therefore the only reliable evidence that the decision was taken deliberately rather than assumed.

3. Self-Assessment of Applicability

Applicability was assessed on [Date] against the three cumulative criteria of § 28 BSIG: a listed sector and entity type, establishment in Germany, and satisfaction of the size test.

3.1 Criterion 1 — Sector and entity type

MunichTech GmbH operates a B2B SaaS platform supplying financial-data analytics and data-processing services to banks, insurers and asset managers. The service is delivered as a managed ICT capability: MunichTech operates the platform, the data pipelines and the underlying AWS estate on behalf of its clients, rather than handing software to them to run themselves.

This places the entity in Anlage 1, Sektor 6 "Digitale Infrastruktur", Einrichtungsart "IKT-Dienstleistungsmanagement (B2B)" — managed ICT service provision to business customers.

An earlier internal position classified the entity against NIS2 Annex II, the providers of digital services (online marketplaces, search engines and social networks). That position was wrong and has been withdrawn. Annex II covers consumer-facing digital services; MunichTech provides none of the three listed service types.

3.2 Criterion 2 — Establishment in Germany

MunichTech GmbH is incorporated and headquartered in Munich and provides its services from Germany. No establishment exists in another Member State, so the BSI is the competent authority and no cross-border coordination under NIS2 Art. 26 arises.

3.3 Criterion 3 — Size test

The size test is applied to the entity as a whole, not to a business unit, customer segment or product line:

- Employees: 50, by headcount and by full-time equivalent. The medium-sized threshold is 50 or more.
- Annual turnover: EUR 12.4 million. The financial threshold is more than EUR 10 million.
- Balance-sheet total: below the EUR 10 million alternative limb. It is not decisive here, because the headcount and turnover limbs are each satisfied independently.

Both limbs of the size test point the same way, so the conclusion does not depend on which limb is applied or on how the headcount is rounded.

3.4 Conclusion

Result: MunichTech GmbH is a wichtige Einrichtung within the meaning of § 28(2) BSIG, Anlage 1, Sektor 6. The obligations of the BSIG applied to the entity in full from 6 December 2025, independently of the registration date.

4. Classification as a wichtige Einrichtung

The BSIG distinguishes two categories of entity. Besonders wichtige Einrichtungen are large entities — more than 249 employees, or more than EUR 50 million turnover and more than EUR 43 million balance-sheet total — together with a defined group of critical operators. Wichtige Einrichtungen are medium-sized entities operating in a listed sector.

MunichTech GmbH is a medium-sized entity and is therefore a wichtige Einrichtung. It is not a besonders wichtige Einrichtung, and nothing in this record should be read as claiming otherwise.

The distinction is not cosmetic. It sets the fine ceiling under § 65 BSIG — up to EUR 10 million or 2% of worldwide annual turnover for besonders wichtige Einrichtungen, up to EUR 7 million or 1.4% for wichtige Einrichtungen — and it determines the intensity of BSI supervision. Applying the wrong tier overstates the exposure and damages the credibility of the assessment in front of clients and auditors.

5. Registration under § 33 BSIG

5.1 Timeline

- 6 December 2025 — the amended BSIG enters into force; obligations apply from this date.
- 6 January 2026 — the BSI registration portal opens.
- 6 March 2026 — statutory registration deadline, three months after entry into force.
- 18 February 2026 — MunichTech GmbH submits its registration.

Registration was completed ahead of the statutory deadline, leaving room to correct any field the BSI subsequently queries without the entity falling into breach.

5.2 Route taken

Registration followed the two-step route operated by the BSI. Access is federated through Mein Unternehmenskonto (MUK), and the entity data set is then entered in the BSI registration portal. Because the MUK account authenticates the legal entity rather than a natural person, the registration is bound to MunichTech GmbH; the named contact point can change without re-registering the entity.

5.3 Submitted data set

The following fields were submitted. This table is the authoritative internal copy of the registration content and is the baseline for any later update:

Field	*Value submitted*
Entity name	MunichTech GmbH
Registered address	Munich, Bavaria, Germany
Legal form	GmbH
Sector	Anlage 1, Sektor 6 — Digitale Infrastruktur
Entity type	IKT-Dienstleistungsmanagement (B2B)
Entity category	wichtige Einrichtung
Member States of service provision	Germany only; no other Member State
Contact point	IT Security Lead, via the security functional mailbox
Telephone and website	Held in the BSI portal; not reproduced in this document
IP ranges and domain identifiers	Not applicable — no publicly routable IP range is operated by the entity
Registration submitted	18 February 2026

5.4 Evidence retained

The following items are held in the ISMS evidence register and together demonstrate that registration took place:

- EV-REG-001 — capture of the BSI portal submission confirmation, timestamped 18 February 2026.
- EV-REG-002 — system-generated acknowledgement of receipt from the BSI portal.
- EV-REG-003 — MUK account record identifying MunichTech GmbH as the authenticated legal entity.

The BSI does not issue a registration certificate. No document in this portfolio has been created to resemble one, and this record deliberately does not quote a registration number.

6. Contact Point and Communication with the BSI

§ 33 BSIG requires a designated contact point. MunichTech GmbH has named the IT Security Lead as primary contact and the Managing Director as deputy, reachable through a functional mailbox so that the contact survives staff turnover. The contact details on file with the BSI are verified at each management review; a stale contact point is itself a compliance finding.

Inbound BSI correspondence is handled as a regulatory communication. It is logged on receipt, acknowledged within two business days, and assigned to the IT Security Lead, who reports material items to the management review.

7. Resulting Obligations

The classification triggers a defined set of obligations. Each is owned and evidenced elsewhere in the ISMS, so this record does not restate the detail:

Obligation	*BSIG provision*	*Where it is discharged*
Risk-management measures across the ten NIS2 Art. 21 areas	§ 30 BSIG	Information Security Policy (MT-ISMS-POL-001); Statement of Applicability (MT-ISMS-SOA-001)
Incident reporting: 24-hour early warning, 72-hour notification, one-month final report	§ 32 BSIG	NIS-2 Incident Reporting Workflow (MT-NIS2-IRP-001)
Registration, and update of registered data on material change	§ 33 BSIG	This record
Management-body approval, oversight and training	§ 38 BSIG	Information Security Policy; Management Review Agenda (MT-ISMS-MRA-001)
Supply-chain security for direct suppliers and service providers	§ 30 BSIG (NIS2 Art. 21(2)(d))	Information Asset Register (MT-ISMS-IAR-001); supplier assessments

The BSIG also defines a near miss ("Beinahevorfall", § 2 Nr. 1 BSIG). The incident reporting workflow handles near misses alongside incidents, so that a narrowly avoided outage is analysed even where no notification obligation is triggered.

8. Interfaces with the ISMS

This record is not standalone. It fixes inputs on which other artifacts depend, and a change here propagates:

Artifact	*Dependency*
Scope and Context Document (MT-ISMS-SCO-001)	Carries the entity classification and the legal-register entry in its Clause 4.1 and 4.2 analysis
Risk Register (MT-ISMS-RR-001)	Holds the compliance risk of misclassification and of a missed § 32 reporting deadline
Statement of Applicability (MT-ISMS-SOA-001)	A.5.31 (legal, statutory and regulatory requirements) and A.5.5 (contact with authorities)
NIS-2 Incident Reporting Workflow (MT-NIS2-IRP-001)	Operationalises § 32 BSIG and uses the contact point established here
Internal Audit Checklist (MT-ISMS-AUD-001)	Tests that the registered data set still matches the entity as it operates today

9. Review and Re-Assessment

The assessment is re-performed, and the classification re-confirmed or revised, whenever any of the following occurs:

- Headcount falls below 50, or turnover below EUR 10 million, for two consecutive financial years — a possible basis for leaving scope, although exit is not automatic and the BSI does not grant it on request.
- A change in the nature of the service, such that the Einrichtungsart in Anlage 1 changes.
- Expansion into another Member State, which may change the competent authority.
- Merger, acquisition, change of legal form or change of control.
- A BSI publication that changes the sector mapping or the interpretation of the size test.
- In any event annually, as a standing item at the management review.

A revised assessment never silently overwrites this one. Each re-assessment is issued as a new version with its own revision-history row, and the superseded version is retained as evidence of how the position evolved.

10. Limitations of This Record

Stating the limits of the evidence is part of presenting it honestly:

- This is a self-assessment. The BSI has neither audited nor approved the classification, and no BSI endorsement is implied.
- This is not a BSI registration certificate. No such certificate exists, and none has been simulated for this portfolio.
- The record evidences that a registration was submitted. It does not guarantee that the BSI will accept every field; corrections requested by the BSI are logged against this record.
- The legal analysis reflects the BSIG as in force on the date of issue. A later amendment, or a change in BSI guidance, may change the conclusion.
- It evidences an internal decision, not compliance with §§ 30, 32 and 38 BSIG. Those obligations are evidenced by their own artifacts.

11. Document Sign-Off

By signing below, the Managing Director confirms that the entity classification recorded in this document is accepted, and that the obligations arising from it are resourced within the ISMS.

DOCUMENT APPROVAL

PREPARED BY	
Name	Austin Bond
Title	Junior GRC Consultant
Date	[Date]
Signature	
REVIEWED BY	
Name	[Senior GRC Partner Name]
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Date	[Date]
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APPROVED BY	
Name	[CEO / Managing Director Name]
Title	Chief Executive Officer, MunichTech GmbH
Date	[Date]
Signature	